

7. 9:00 AM CASE NUMBER: C25-01877
CASE NAME: SUZETTE ALIDIO VS. KSL ASSOCIATE GROUP, INC.
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

See Line 6 above.

Law & Motion

8. 9:00 AM CASE NUMBER: C24-01654
CASE NAME: MARIA ROSILLO VS. ANTIOCH DUNES HEALTHCARE, LLC, A LIMITED LIABILITY COMPANY
***HEARING ON MOTION IN RE: COMPLIANCE HEARING (SET BY THE COURTROOM)**
FILED BY:
TENTATIVE RULING:

The Court has reviewed the declaration of Nick Castro. It appears that the settlement administrator is in compliance with the terms of the class action settlement agreement insofar as action was required to be taken as of July 14, 2026.

However, there remain obligations regarding the uncashed settlement checks, as contemplated by the settlement agreement. Therefore, the Court continues this hearing to January 27, 2027, at 8:30 a.m. Counsel is ordered to file a final report and declaration regarding completion of the tasks required by the settlement agreement no later than one week before the continued Compliance hearing.

9. 9:00 AM CASE NUMBER: C24-01997
CASE NAME: GLORIA NASH VS. 1ST NORTHERN CALIFORNIA CREDIT UNION
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: NASH, GLORIA
TENTATIVE RULING:

Plaintiff Gloria Nash moves for preliminary approval of her class action and PAGA settlement with defendant 1st Northern California Credit Union.

A. Background and Settlement Terms

The original complaint was filed by Plaintiff on July 30, 2024, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum, straight time and overtime wages, failure to provide meal and rest breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, failure to pay all wages due on separation and unfair business practice. A Complaint alleging PAGA claims

(based on a notice to the LWDA given June 20, 2024), was filed on March 7, 2025. On July 22, 2025, the Court entered an order on the parties' stipulation to consolidate the cases for settlement purposes.

The proposed settlement would create a gross settlement fund of \$700,000. The class representative payment to plaintiff would be \$10,000. Attorney's fees would be up to \$233,333.33 (one-third of the settlement). Litigation costs would not exceed \$30,000. The settlement administrator's costs would be up to \$10,000. PAGA penalties would be \$17,500, resulting in a payment of \$11,375 to the LWDA and \$6,125 to the covered employees. The net amount paid directly to the class members would be about \$406,000. The fund is non-reversionary. Based on the estimated class size of 158, the average net payment for each class member is approximately \$2,569.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendant during the class period.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of "PAGA pay periods" worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The proposed settlement provides that checks undelivered or uncashed by the void date will be provided to the State Controller's Unclaimed Property Fund.

Informal written discovery was undertaken, and a data expert was retained. The matter settled after arms-length negotiations, which included a session with a mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The moving papers include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

Counsel attest that notice of the proposed settlement was transmitted to the LWDA concurrently with the filing of the motion.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.) Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

There is one issue that must be addressed. The settlement contains release language covering all “claims that were or reasonably could have been, alleged based on the facts contained in the Actions, and claims under the Fair Employment and Housing Act, Americans with Disabilities Act, Title VII of the Civil Rights Act of 1964, the California Labor Code, and all equivalent claims under federal law.” Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 [“A court cannot release claims that are outside the scope of the allegations of the complaint.” “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.) Thus, the Court questions the inclusion of the italicized language. Counsel shall be prepared to address that at the hearing.

C. Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is

reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (Id., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to prepare a lodestar fee estimate for the motion for final approval.

The reasonableness of litigation costs and the settlement administrator’s fees will be considered at final approval.

Similarly, the requested representative payment of \$10,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. The Court notes there is nothing in Ms. Nash’s declaration describing the amount of time she has devoted to this case. That may be addressed in connection with the final approval hearing.

D. Conclusion

But for the question of the scope of the release, the Court finds that the agreement is sufficiently fair, reasonable, and adequate, to justify preliminary approval. Counsel shall be prepared to address the scope of the release at the hearing of this motion.

If the Court is satisfied with the proposed release or an amended version of it, and is therefore, prepared to give preliminary approval to the proposed settlement then counsel will be directed to prepare an order reflecting this tentative ruling, and determinations made at the hearing. Counsel shall also request a hearing date for a motion for final approval. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

10. 9:00 AM CASE NUMBER: C24-02017

CASE NAME: RAINY FISHER VS. RLW PROPERTIES, LLC

***HEARING ON MOTION IN RE: FOR FINAL APPROVAL OF CLASS ACTION SET BY THE COURTROOM**

FILED BY: FISHER, RAINY DAY

***TENTATIVE RULING**

On November 20, 2025, Judge Weil ordered preliminary approval of the class settlement in this action. Now, plaintiff seeks final approval.

Judge Weil undertook a detailed review of the settlement agreement and found it to be “sufficiently fair, reasonable and adequate.” Subsequent events have only strengthened that conclusion. Class notice was properly given and only 23 notices were returned as undeliverable out of the 534 that were mailed; a low rate of approximately 4%. Of the 511 that were delivered, there were no opt outs